

TENTATIVE RULING(S) FOR August 26, 2026

Department S37 – Judge Winston Keh

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CIVSB2602496

Ruiz v. Tropicale Food

TENTATIVE RULING(S):

I. INTRODUCTION

Defendant filed the instant Motion to Compel Arbitration, supported by the declarations of Mark S. Askanas and Maria Rubio. Plaintiff opposes the Motion, and Defendant has filed a reply. For the reasons set forth below, the Court **OVERRULES Plaintiff's evidentiary objections and GRANTS Defendant's Motion to Compel Arbitration.** The Court further orders the action stayed pending completion of arbitration.

II. DISCUSSION

A. Evidentiary Objections

Plaintiff submits four objections to the declaration of Maria Rubio. The objections are

OVERRULED.

Plaintiff's objections essentially concern the authenticity of the arbitration agreement and the circumstances under which Plaintiff agreed to arbitrate. California Rules of Court, rule 3.1330 requires a petition to compel arbitration to state verbatim the provisions of the written agreement providing for arbitration or to attach and incorporate a copy of the agreement. The rule does not require the petitioner, at the pleading stage, to authenticate the agreement through the ordinary evidentiary procedures applicable at trial. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218–219.) Once the petitioner alleges the existence of the agreement and provides the agreement or its relevant provisions, the burden shifts to the opposing party to establish that the purported agreement is not genuine or otherwise is unenforceable. (*Id.* at p. 219.)

Here, Defendant has submitted a copy of the Agreement bearing Plaintiff's signature, together with the Rubio Declaration explaining the circumstances under which the Agreement was maintained in Defendant's employment records. Plaintiff does not materially dispute that the signature appearing on the Agreement is hers. Rather, Plaintiff states that she does not recall signing the Agreement and did not understand that she was agreeing to arbitration. A lack of recollection, standing alone, does not establish that Plaintiff did not execute the Agreement. Accordingly, the Court finds that Defendant has sufficiently established the existence of a written arbitration agreement between the parties.

B. Analysis

1. The FAA Applies

The FAA applies to arbitration agreements involving interstate commerce. (9 U.S.C. § 2.)

Defendant bears the burden of establishing FAA coverage.

Maria Rubio, Defendant's Vice President of Human Resources, declares that Defendant manufactures and distributes Mexican-inspired paletas and ice-cream products under the Helados Mexico and La Michoacana brands. Defendant conducts its operations through manufacturing facilities and distributes its products to stores throughout the United States.

(Rubio Decl. ¶¶ 3–4.) This evidence establishes that Defendant's business activities involve interstate commerce.

In addition, the Agreement expressly provides that disputes are to be submitted to binding arbitration “under the Federal Arbitration Act (‘FAA’).” The parties therefore expressly selected the FAA to govern their arbitration agreement.

The FAA applies.

2. An Enforceable Arbitration Agreement Exists and Covers Plaintiff's Claims

Defendant has established the existence of a written arbitration agreement signed by Plaintiff.

The Agreement provides, in pertinent part, that Plaintiff and Defendant agree to utilize “binding individual arbitration as the sole and exclusive means to resolve all disputes that may arise out of or be related in any way to my employment.” It further provides that claims between Plaintiff and Defendant “shall be submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act (‘FAA’), in conformity with the procedures of the California Arbitration Act.”

The Agreement further provides that its scope includes disputes based on “tort, negligence, contract, statute,” including claims of discrimination, harassment, and retaliation under state or federal law. Certain expressly identified matters are excluded, including claims arising under the National Labor Relations Act brought before the National Labor Relations Board, claims for medical and disability benefits under the California Workers' Compensation Act, Employment Development Department claims, and claims otherwise not subject to arbitration under applicable law.

Plaintiff's claims fall within the Agreement's broad language concerning disputes arising out of or relating to her employment. Plaintiff does not materially dispute that her asserted claims fall within the Agreement's scope.

The Court therefore finds that the parties entered into an arbitration agreement and that the Agreement covers the claims asserted in this action.

3. Plaintiff Has Not Established Unconscionability

Plaintiff's principal defense is that the Agreement is unconscionable.

Under California law, unconscionability has both procedural and substantive components. Procedural unconscionability concerns oppression or surprise in the formation of the contract, while substantive unconscionability concerns whether the contract's terms impose overly harsh or one-sided results. Both elements must generally be present, although they need not be present to the same degree. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 493.)

a. Procedural Unconscionability

Plaintiff argues that the Agreement was presented through surprise and oppression. She points to the document's title, "EMPLOYEE ACKNOWLEDGEMENT AND AGREEMENT," and the fact that its first paragraph concerns at-will employment rather than arbitration. She further declares that she does not recall signing the Agreement, that no one explained it to her, and that she would have assumed she was merely acknowledging receipt of the employee handbook.

The Court finds some degree of procedural unconscionability, but only to a minimal degree.

The Agreement was presented in the employment context and was not shown to have been the product of individual negotiation. Such circumstances may support a finding of some procedural unconscionability. But the circumstances here are materially different from those in *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, where the Supreme Court found substantial oppression and surprise based on the manner in which the arbitration agreement was presented, the pressure to sign immediately, the lack of meaningful opportunity to review or consult counsel, and the unusually dense and difficult-to-read presentation of the arbitration provision.

Here, the Agreement was not shown to be comparably difficult to read or understand. The arbitration provision is identifiable and expressly states that the parties waive their respective rights to litigate covered disputes in court and agree to binding individual arbitration. Nor is there evidence that Plaintiff was threatened, rushed, denied an opportunity to review the document, or affirmatively misled about its contents. Plaintiff's inability to recall signing the Agreement likewise does not establish surprise or negate execution, particularly where the Agreement bears her signature and Plaintiff does not materially dispute that the signature is hers.

Accordingly, the Court finds only **minimal procedural unconscionability**.

b. Substantive Unconscionability

Plaintiff next argues that the Agreement is substantively unconscionable because it lacks mutuality, is silent concerning arbitration costs, contains no mechanism for initiating arbitration, permits Defendant to modify arbitration procedures, and allegedly encompasses disputes beyond the employment relationship.

These arguments do not establish substantive unconscionability.

First, the Agreement contains the requisite bilateral obligation to arbitrate. It provides that “both I and the Company agree” that claims Plaintiff may have against Defendant and claims Defendant may have against Plaintiff shall be submitted to arbitration. Thus, the Agreement does not impose arbitration solely upon Plaintiff while reserving Defendant a unilateral right to proceed in court. The agreement contains the “modicum of bilaterality” required by *Armendariz*. (24 Cal.4th at pp. 117–118.)

Second, the Agreement's silence concerning allocation of arbitration costs does not render it substantively unconscionable. *Armendariz* itself recognized that an employment arbitration agreement covering statutory claims implicitly requires the employer to bear arbitration costs unique to arbitration and that the absence of an express cost provision is not, by itself, a basis for refusing enforcement. (24 Cal.4th at p. 113; see also *Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1080–1082.) The Agreement therefore is not rendered unenforceable merely because it does not expressly allocate those costs.

Third, Plaintiff has not demonstrated that the Agreement is substantively unconscionable because it does not contain a particular mechanism for initiating arbitration. Plaintiff cites no persuasive authority establishing that the absence of such a provision renders an otherwise valid arbitration agreement unenforceable.

Fourth, Plaintiff's contention that Defendant may modify arbitration procedures is unsupported by a showing that Defendant possesses an unrestricted unilateral power to alter the substantive rights conferred by the Agreement or to defeat its mutuality. Plaintiff has not established that this provision creates an objectively unfair or one-sided result.

Finally, although the Agreement broadly covers disputes arising out of or related to Plaintiff's employment, the Court need not construe the phrase "related in any way" to extend the Agreement beyond disputes bearing a relationship to the employment relationship. To the extent Plaintiff identifies any potentially overbroad language, that language is severable under the Agreement's express severability provision. The Court therefore need not invalidate the arbitration agreement as a whole.

The Court also considers the California Supreme Court's recent guidance in *Ramirez*. That decision confirms that the inquiry into unconscionability is directed to the fairness of the agreement's terms and that courts should distinguish between an agreement whose central purpose is tainted by illegality and one containing isolated provisions that can be severed or limited. Here, Plaintiff has not established a substantively unconscionable term sufficient to invalidate the Agreement. Even assuming the Agreement contains some arguable procedural defect, the degree of procedural unconscionability is minimal and is not accompanied by substantively unconscionable terms. The Agreement therefore is not unconscionable.

D. No Other Defense to Enforcement Has Been Established

Plaintiff has not established that Defendant waived its right to compel arbitration. Nor has Plaintiff identified grounds for revocation of the Agreement independent of her unconscionability argument. The Court therefore finds no basis under Code of Civil Procedure section 1281.2 to deny enforcement. Since Defendant has established the existence of an enforceable arbitration agreement covering Plaintiff's claims, the Court must compel arbitration.

E. Stay of Proceedings

Defendant also requests a stay of this action pending arbitration. Code of Civil Procedure section 1281.4 provides that when an application for an order compelling arbitration has been made concerning a controversy involved in a pending court action, the court shall stay the action upon motion until the application is determined and, if arbitration is ordered, until the arbitration is completed, subject to the statutory provisions concerning a severable controversy.

Because the Court is ordering the parties to arbitrate the claims asserted in this action, the action shall be stayed pending completion of arbitration.

III. RULING AND ORDER

For the foregoing reasons, Defendant's Motion to Compel Arbitration is **GRANTED**.

The Court hereby ORDERS as follows:

1. **Plaintiff's four evidentiary objections to the declaration of Maria Rubio are OVERRULED.**
2. The Court finds that Plaintiff and Defendant entered into a valid and enforceable written arbitration agreement.
3. The Court finds that the FAA applies to the Agreement.
4. The Court finds that the claims asserted by Plaintiff in this action fall within the scope of the Agreement.
5. **Plaintiff and Defendant are ORDERED to submit the claims asserted in this action to binding individual arbitration in accordance with the terms of their Agreement.**
6. The parties shall proceed with arbitration in accordance with the Agreement and applicable law.
7. Pursuant to Code of Civil Procedure section 1281.4, this action is **STAYED pending completion of arbitration**, or until further order of the Court.
8. The Court retains jurisdiction to enforce the arbitration order and to address any further matters properly presented following completion of the arbitration.

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CIVSB2314282

Murphy vs Desert Inn Motel (highly recommended)

TENTATIVE RULING(S):

Before the Court is Defendants' Motion to Tax Costs. The Motion seeks to tax costs from the Memorandum of Costs filed by Plaintiff on May 8, 2026. Plaintiff filed an Opposition supported by the declarations of Germain Labat and Tomas Ross. No reply has been filed as of August 20, 2026.

Having considered the moving and opposing papers, the declarations submitted, and the

I. Court Reporter Fees

Moving Defendants request the court strike \$42,849.50 in court reporter fees. While statutory court reporter fees are allowable under section 1033.5, transcripts of court proceedings not